

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30				1. REQUISITION NUMBER		PAGE 1 OF 28	
2. CONTRACT NO.		3. AWARD/ EFFECTIVE DATE	4. ORDER NUMBER		5. SOLICITATION NUMBER 12639526Q0139		6. SOLICITATION ISSUE DATE 05/07/2026
7. FOR SOLICITATION INFORMATION CALL:		a. NAME AMANDA BARBOSA			b. TELEPHONE NUMBER (No collect calls) 6123363433		8. OFFER DUE DATE/LOCAL TIME 05/25/2026 1700 CT
9. ISSUED BY USDA APHIS 250 MARQUETTE AVE SUITE410 MINNEAPOLIS MN 55401				CODE APHIS-MN-1263	10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☒ SET ASIDE: 100.00 % FOR: ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ 8(A) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 488190 SIZE STANDARD: \$40		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING 14. METHOD OF SOLICITATION ☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)	
15. DELIVER TO See Schedule		CODE APHIS-WS-OK-SO-7LAK	16. ADMINISTERED BY USDA APHIS 250 MARQUETTE AVE SUITE410 MINNEAPOLIS MN 55401				
17a. CONTRACTOR/ OFFEROR		CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY			
TELEPHONE NO.		CODE	CODE				
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES			21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
0001	DELIVER TO: Oklahoma State Office USDA, APHIS, WS 2800 N LINCOLN BLVD 2ND FLOOR OKLAHOMA CITY OK 73105 US Period of Performance: 07/01/2026 to 06/30/2031 Ordering Period One: July 1, 2026 - June 30, 2027 for aircraft inspections, maintenance and repair Continued ... (Use Reverse and/or Attach Additional Sheets as Necessary)						
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Government Use Only)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED.	
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED.	
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.					☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:		
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (Type or print)			30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print)		31c. DATE SIGNED	

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
0002	services. Prices in accordance with CLINs 0001a - 0001f of the Schedule. Product/Service Code: J015 Product/Service Description: MAINT/REPAIR/REBUILD OF EQUIPMENT- AIRCRAFT AND AIRFRAME STRUCTURAL COMPONENTS Period of Performance: 07/01/2026 to 06/30/2027 Ordering Period Two: July 1, 2027 - June 30, 2028 for aircraft inspections, maintenance and repair services. Prices in accordance with CLINs 0002a - 0002f of the Schedule. Product/Service Code: J015 Product/Service Description: MAINT/REPAIR/REBUILD OF EQUIPMENT- AIRCRAFT AND AIRFRAME STRUCTURAL COMPONENTS Period of Performance: 07/01/2027 to 06/30/2028				
0003	Ordering Period Three: July 1, 2028 - June 30, 2029 for aircraft inspections, maintenance and repair services. Prices in accordance with CLINs 0003a - 0003f of the Schedule. Product/Service Code: J015 Product/Service Description: MAINT/REPAIR/REBUILD OF EQUIPMENT- AIRCRAFT AND AIRFRAME STRUCTURAL COMPONENTS Continued ...				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL				
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT			42a. RECEIVED BY (<i>Print</i>)	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		41c. DATE	42b. RECEIVED AT (<i>Location</i>)	
			42c. DATE REC'D (YY/MM/DD)	42d. TOTAL CONTAINERS

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Period of Performance: 07/01/2028 to 06/30/2029				
0004	Ordering Period Four: July 1, 2029 - June 30, 2030 for aircraft inspections, maintenance and repair services. Prices in accordance with CLINs 0004a - 0004f of the Schedule. Product/Service Code: J015 Product/Service Description: MAINT/REPAIR/REBUILD OF EQUIPMENT- AIRCRAFT AND AIRFRAME STRUCTURAL COMPONENTS				
	Period of Performance: 07/01/2029 to 06/30/2030				
0005	Ordering Period Five: July 1, 2030 - June 30, 2031 for aircraft inspections, maintenance and repair services. Prices in accordance with CLINs 0005a - 0005f of the Schedule. Product/Service Code: J015 Product/Service Description: MAINT/REPAIR/REBUILD OF EQUIPMENT- AIRCRAFT AND AIRFRAME STRUCTURAL COMPONENTS				
	Period of Performance: 07/01/2030 to 06/30/2031				

Helicopter Inspection, Maintenance, and Repair Services

United States Department of Agriculture (USDA)
Animal and Plant Health Inspection Service (APHIS)
Wildlife Services (WS) - Oklahoma

PART 1.0 - SCHEDULE OF ITEMS

0001 CLINs

Ordering Period One: July 1, 2026 – June 30, 2027

<i>Item No.</i>	<i>Description of Item</i>	<i>Unit</i>	<i>Estimated Quantity</i>	<i>Unit Price / Total Amount</i>
0001a.	100 Hour Inspection w/o Parts (Bell 206B)	Each	18	\$ _____ / \$ _____
0001b.	300 Hour Inspection w/o Parts (Bell 206B)	Each	4	\$ _____ / \$ _____
0001c.	Annual Inspection w/o Parts (Bell 206B)	Each	4	\$ _____ / \$ _____
0001d.	Hourly Labor Rate Repairs	Hour	1,500	\$ _____ / \$ _____
0001e.	Parts for Repairs & Equipment (TBD) **	Each	N/A	Not to Exceed \$750,000.00
0001f.	Travel Expenses if Required	Day	As authorized	\$180 / Not to Exceed \$10,000.00

0002 CLINs

Ordering Period Two: July 1, 2027 – June 30, 2028

<i>Item No.</i>	<i>Description of Item</i>	<i>Unit</i>	<i>Estimated Quantity</i>	<i>Unit Price / Total Amount</i>
0002a.	100 Hour Inspection w/o Parts (Bell 206B)	Each	18	\$ _____ / \$ _____
0002b.	300 Hour Inspection w/o Parts (Bell 206B)	Each	4	\$ _____ / \$ _____
0002c.	Annual Inspection w/o Parts (Bell 206B)	Each	4	\$ _____ / \$ _____
0002d.	Hourly Labor Rate Repairs	Hour	1,500	\$ _____ / \$ _____
0002e.	Parts for Repairs & Equipment (TBD) **	Each	N/A	Not to Exceed \$750,000.00
0002f.	Travel Expenses if Required	Day	As authorized	\$180 / Not to Exceed \$10,000.00

0003 CLINs

Ordering Period Three: July 1, 2028 – June 30, 2029

<i>Item No.</i>	<i>Description of Item</i>	<i>Unit</i>	<i>Estimated Quantity</i>	<i>Unit Price / Total Amount</i>
0003a.	100 Hour Inspection w/o Parts (Bell 206B)	Each	18	\$ _____ / \$ _____
0003b.	300 Hour Inspection w/o Parts (Bell 206B)	Each	4	\$ _____ / \$ _____
0003c.	Annual Inspection w/o Parts (Bell 206B)	Each	4	\$ _____ / \$ _____
0003d.	Hourly Labor Rate Repairs	Hour	1,500	\$ _____ / \$ _____
0003e.	Parts for Repairs & Equipment (TBD) **	Each	N/A	Not to Exceed \$750,000.00
0003f.	Travel Expenses if Required	Day	As authorized	\$180 / Not to Exceed \$10,000.00

0004 CLINs

Ordering Period Four: July 1, 2029 – June 30, 2030

<i>Item No.</i>	<i>Description of Item</i>	<i>Unit</i>	<i>Estimated Quantity</i>	<i>Unit Price / Total Amount</i>
0004a.	100 Hour Inspection w/o Parts (Bell 206B)	Each	18	\$ _____ / \$ _____
0004b.	300 Hour Inspection w/o Parts (Bell 206B)	Each	4	\$ _____ / \$ _____
0004c.	Annual Inspection w/o Parts (Bell 206B)	Each	4	\$ _____ / \$ _____
0004d.	Hourly Labor Rate Repairs	Hour	1,500	\$ _____ / \$ _____
0004e.	Parts for Repairs & Equipment (TBD) **	Each	N/A	Not to Exceed \$750,000.00
0004f.	Travel Expenses if Required	Day	As authorized	\$180 / Not to Exceed \$10,000.00

0005 CLINs

Ordering Period Five: July 1, 2030 – June 30, 2031

<i>Item No.</i>	<i>Description of Item</i>	<i>Unit</i>	<i>Estimated Quantity</i>	<i>Unit Price / Total Amount</i>
0005a.	100 Hour Inspection w/o Parts (Bell 206B)	Each	18	\$ _____ / \$ _____
0005b.	300 Hour Inspection w/o Parts (Bell 206B)	Each	4	\$ _____ / \$ _____
0005c.	Annual Inspection w/o Parts (Bell 206B)	Each	4	\$ _____ / \$ _____
0005d.	Hourly Labor Rate Repairs	Hour	1,500	\$ _____ / \$ _____
0005e.	Parts for Repairs & Equipment (TBD) **	Each	N/A	Not to Exceed \$750,000.00
0005f.	Travel Expenses if Required	Day	As authorized	\$180 / Not to Exceed \$10,000.00

CONTRACT CEILING**\$5,000,000.00**

**** (TBD) To Be Determined.** The Contractor will supply a quote for parts with the quote for any required repairs. Pricing for parts must be consistent with best prices offered to the Contractor's most favorable customers.

SCHEDULE NOTES

1. The quantities listed in the "Schedule of Items" are estimated requirements for the contract period. The Government estimates, but does not guarantee, the volume of purchases under this contract. During the period of performance, the number of aircraft, inspections, repair hours, and parts required may vary. Other than any guaranteed minimum of \$5,000.00, no guarantee is given as to the actual number of inspection hours, hourly labor hours, or parts required during the term of this contract.
2. Repairs must be performed on a firm fixed price basis. For each repair, the Contractor must provide the USDA, APHIS, WS program representative, with a firm fixed price quote based on the Contractor's assessment of the repairs to be completed. After Government review and approval, the Contractor may proceed with the repair work.
3. Parts, materials, and consumables must be quoted and supported by documentation sufficient for the Government to evaluate price reasonableness, traceability, and airworthiness. The Contractor must not install unapproved, unairworthy, or unsupported parts.
4. On rare occasions travel may be required if an aircraft is inoperable due to mechanical issues and cannot be flown to the Contractor's facility. Travel must be authorized in advance by the

authorized WS program representative. If travel is authorized, travel will be reimbursed at the fixed daily rate in the Schedule for each individual traveling. Employee travel time from the Contractor's facility to the aircraft and return travel time to the Contractor's facility after repair must be agreed upon in advance and is reimbursed at the standard hourly labor rate in the Schedule for each individual traveling.

5. The Department of Labor Service Contract Act applies to this contract. The Contractor is responsible for obtaining the wage determination applicable to the location where services will be performed and determining the appropriate labor categories or occupation codes under the applicable wage determination. Contact the Contracting Officer for assistance if needed.

PART 2.0 - PERFORMANCE WORK STATEMENT

2.1 - Scope

This Performance Work Statement (PWS) defines the requirements for inspection, maintenance, repair, and specialized mission-equipment installation services for USDA APHIS Wildlife Services rotary-wing aircraft that are assigned to the Oklahoma program or are transiently supported by the State Office. The Contractor must provide all management, personnel, facilities, tooling, equipment, technical data, quality control, parts support, and documentation necessary to perform the tasks and deliverables described in this PWS.

2.2 - Background

USDA, APHIS, Wildlife Services provides Federal leadership and expertise to resolve wildlife conflicts and protect agricultural, natural, and public resources. Rotary-wing aircraft support these missions throughout Oklahoma and may operate from multiple locations depending on mission needs. The aircraft require recurring inspections, scheduled and unscheduled maintenance, repairs, component replacement, and installation or removal of specialized mission equipment to remain safe, compliant, and available for mission support.

Aircraft covered under this PWS may include Bell 206B helicopters, MD-series helicopters, and other similar platforms assigned to the Oklahoma WS program. Each aircraft is expected to fly approximately 400 hours annually, although actual flight hours may vary depending on mission needs, weather conditions, funding levels, aircraft availability, and program priorities.

2.3 - Purpose

The purpose of this PWS is to establish performance-based requirements for maintaining Government-owned rotary-wing aircraft in an airworthy, mission-ready condition. Required services include 100-hour inspections, 300-hour inspections, annual inspections, scheduled and unscheduled maintenance, troubleshooting, repairs, component replacement, avionics or mission equipment installation, field maintenance when aircraft cannot be flown to the Contractor's facility, documentation, and coordination with Government aviation personnel.

2.4 - Contract Type and Term

The Government will award a firm fixed price, indefinite delivery, indefinite quantity commercial services and supply contract. The period of performance includes five ordering

periods, each twelve months in duration. Individual orders will identify the funded work, aircraft, services, parts, and any authorized travel required.

2.5 - Limitations on Personal Services

The services described in this PWS are non-personal services. The Government will not exercise supervision or control over Contractor personnel. Contractor personnel are accountable to the Contractor, and the Contractor is responsible for managing, supervising, and directing its employees and any approved subcontractors.

2.6 - Performance Tasks

2.6.1 Objective 1: Provide Scheduled Inspection and Preventive Maintenance Services

The Contractor must complete ordered 100-hour, 300-hour, annual, and other required inspections in accordance with applicable FAA regulations, manufacturer maintenance instructions, approved inspection programs, technical publications, and Government requirements.

Although the aircraft covered under this contract operate as Public Aircraft Operations (PAO) and are not subject to FAA regulatory requirements, the Government requires maintenance, inspection, and recordkeeping practices aligned with FAA civil aviation standards. The Contractor must maintain safety, airworthiness, and documentation equivalent to those required under 14 CFR Parts 43, 65, and 91, unless otherwise directed by the Government.

Where FAA requirements reference actions not applicable to PAO aircraft (e.g., return-to-service signatures under Part 43), the Contractor must follow equivalent industry-accepted practices and Government-approved procedures. Expected outcomes include timely completion of inspections, accurate discrepancy identification, proper documentation, and return of aircraft to an airworthy condition with minimal operational downtime.

2.6.2 Objective 2: Perform Troubleshooting, Repairs, and Return-to-Service Actions

The Contractor must diagnose discrepancies, provide firm fixed price repair quotes when required, perform approved repairs, replace components, and complete return-to-service actions in accordance with FAA regulations and manufacturer standards. Expected outcomes include safe, airworthy aircraft; properly documented maintenance; and repair solutions that are cost-effective, technically sound, and advantageous to the Government.

2.6.3 Objective 3: Provide Emergency, After-Hours, and Field Maintenance Support

The Contractor must maintain the capability to provide emergency maintenance support 24 hours per day, 7 days per week. The Contractor must ensure that a qualified mechanic is reachable by phone at all times to coordinate emergency repairs and provide timely guidance to the Government. When an aircraft is not airworthy and cannot be flown to the Contractor's facility, the Contractor must be available to travel to the aircraft location when authorized by the Government. Expected outcomes include responsive support, reduced aircraft downtime, and safe recovery or repair of disabled aircraft.

2.6.4 Objective 4: Maintain Qualified Personnel, Facilities, Tools, and Technical Data

The Contractor must provide technically competent maintenance personnel, appropriate facilities, required special tools, support equipment, technical manuals, directives, bulletins, inspection data, and quality control systems necessary to perform the work. Expected outcomes include compliant maintenance, repeatable quality, and a facility capable of supporting the aircraft and mission equipment covered by this PWS.

2.6.5 Objective 5: Manage Parts, Materials, Components, and Mission Equipment

The Contractor must furnish required parts, materials, consumables, and components, and must install or remove specialized mission equipment as ordered. Parts must be approved, traceable, documented, and suitable for the aircraft. Expected outcomes include reliable parts support, proper documentation, and no installation of unapproved or unsupported parts.

2.6.6 Objective 6: Maintain Accurate Records, Quality Control, and Regulatory Compliance

The Contractor must maintain complete and accurate maintenance records, logbook entries, inspection records, parts documentation, component tracking data, and quality control records. Work must comply with applicable FAA regulations, manufacturer requirements, contract requirements, and all accepted maintenance practices. Expected outcomes include auditable records, regulatory compliance, and Government confidence in aircraft airworthiness.

2.6.7 Objective 7: Coordinate Delivery, Access, Communication, and Operational Continuity

The Contractor must coordinate with the Contracting Officer's Representative (COR), WS pilots, State Director or designee, and other authorized Government personnel to schedule maintenance, communicate aircraft status, provide access to aircraft and records, and support continuity of operations. Expected outcomes include transparent communication, predictable scheduling, and timely Government awareness of aircraft status and maintenance issues.

2.6.8 Objective 8: Meet Security, Insurance, Liability, and Safety Requirements

The Contractor must meet all applicable security, eligibility, insurance, liability, and workplace safety requirements. Expected outcomes include properly vetted personnel, valid insurance coverage, protection of Government property, and safe execution of maintenance activities.

2.7 - Deliverable Schedule

Key Deliverables

<i>Item No.</i>	<i>Deliverable / Item Title</i>	<i>Description</i>	<i>Frequency</i>	<i>Reference</i>	<i>Delivery Format</i>	<i>Due By</i>
1	Inspection Completion Report	Record of completed 100-hour, 300-hour, annual, phase, progressive, or other ordered inspection, including discrepancies discovered and corrective actions recommended.	Per inspection	Ref. PWS Sections 2.6.1, 2.8.5, and 2.13	Proper notation in aircraft maintenance records/logbooks	Within 2 business days after inspection completion or before release to service, whichever occurs first

Item No.	Deliverable / Item Title	Description	Frequency	Reference	Delivery Format	Due By
2	Repair Estimate / Firm Fixed Price Quote	Written estimate for required repairs, parts, materials, component work, equipment installation, labor hours, and expected completion date.	As required before repairs	Ref. PWS Sections 2.6.2, 2.8.8, and Schedule Notes	Email to COR or WS program representative	Before beginning non-emergency repair work, unless immediate corrective action is required for safety and authorized by the WS program representative
3	Return-to-Service Documentation	Maintenance release, logbook entry, component tracking update, FAA-required documentation, and confirmation that the aircraft is airworthy.	Per maintenance event	Ref. PWS Sections 2.6.6, 2.8.5, and 2.13	Aircraft records; copy by email upon request	Before Government acceptance or aircraft release
4	Parts and Materials Supporting Documentation	Vendor invoices, traceability documentation, airworthiness approvals, warranty information, and installed component data.	Per invoice or upon request	Ref. PWS Sections 2.8.8 and 2.15	IPP invoice support and email to COR or WS program representative upon request	Submitted with invoice or within 5 business days of request
5	Emergency / Field Maintenance Status Report	Status of after-hours or field maintenance response, diagnosis, repair plan, safety concerns, and estimated return-to-service time.	As required	Ref. PWS Sections 2.6.3 and 2.8.6	Phone notification followed by email	Initial notification as soon as practical; written update within 1 business day
6	Insurance Certificates and Required Endorsements	Certificate of insurance and any required endorsements for work on Government-owned aircraft and Government property.	Prior to award and annually or upon renewal	Ref. PWS Section 2.18	Email to Contracting Officer and COR or WS program representative	Before performance begins and before policy expiration
7	Facility, Personnel, and Certification Verification	Evidence of FAA Repair Station certificate or approved maintenance authority, A&P and Inspection Authorization personnel, specialized training, and facility capability.	Initial and upon change	Ref. PWS Sections 2.8.2, 2.8.3, and 2.8.4	Email to Contracting Officer and COR or WS program representative	Before award or performance; updates within 5 business days of change

2.8 - Performance Requirements

2.8.1 Aircraft Covered

The services described in this PWS apply to Government-owned aircraft assigned to the USDA, APHIS, WS Oklahoma program, as well as to transient aircraft conducting official duties within the state of Oklahoma. Aircraft may include Bell 206B helicopters, MD-series helicopters, and other similar platforms as identified in individual orders. The Government may add, remove, or substitute aircraft during the period of performance based on operational needs.

2.8.2 Contractor Certification and Regulatory Compliance

- The Contractor must comply with all state statutes applicable to aircraft repair facilities and services in the state where the Contractor is located.

- Maintenance must be performed under an FAA authorized repair station certificate where required, or by appropriately certificated personnel authorized to perform the ordered work.
- Although Public Aircraft Operations (PAO) are exempt from FAA oversight, the Contractor must maintain and repair Government-owned aircraft in accordance with applicable Federal Aviation Regulations (to the extent they apply), including, when relevant, 14 CFR Parts 21, 23, 39, 43, 91, 135, and 145.
- The Contractor must comply with 14 CFR 91.409, applicable manufacturer maintenance instructions, FAA Airworthiness Directives, manufacturer service bulletins when required, and all approved or accepted maintenance data applicable to the aircraft.
- The Contractor must utilize a quality control system sufficient to ensure all work complies with FAA regulations, manufacturer standards, and contract requirements.

2.8.3 Personnel Qualifications

- The repair facility must have at least one certified mechanic available to perform inspections, repairs, and maintenance required under this contract. Having two certified mechanics is preferred to reduce aircraft downtime during emergencies or periods of high workload.
- Mechanics performing work under this contract must hold an FAA Airframe and Powerplant certificate appropriate to the work performed.
- The Contractor must have personnel available with Inspection Authorization, or other FAA-authorized capability as applicable, to sign off annual inspections and other required inspections within the required timeframe.
- Certified mechanics must have verifiable experience on turbine engine helicopters. Training at an accredited Bell 206 and/or MD helicopter maintenance school is preferred.
- The Contractor must provide or have access to technicians certified and competent to install, troubleshoot, and repair helicopter avionics and specialized mission equipment when ordered.

2.8.4 Facilities, Equipment, Technical Data, and Tools

- The Contractor must maintain a repair facility appropriate in size, layout, security, and equipment for the maintenance, inspection, repair, and equipment installation work ordered under this contract.
- The Contractor must maintain or have ready access to current manuals, directives, service information, maintenance instructions, wiring data, inspection programs, and applicable bulletins for the aircraft and equipment covered by this PWS.
- The Contractor must furnish special tools, common hand tools, aircraft support equipment, handling equipment, servicing equipment, and test equipment necessary to complete ordered work within required timeframes.
- The Government reserves the right to inspect the Contractor's facility or designate representatives to inspect the facility for maintenance capability before award and during the term of the contract during regular business hours.
- The Contractor must not subcontract any portion of the maintenance or repair work without prior written consent from USDA, APHIS, WS and the Contracting Officer, as required.

2.8.5 Inspection and Maintenance Timeframes

To avoid mission delays, inspections and routine maintenance must be completed within five calendar days from the date the aircraft is delivered to the Contractor's place of performance unless the COR or WS program representative authorizes a different timeframe. If repairs are required, the Contractor must promptly notify the authorized WS program representative, provide an estimate or firm fixed price quote, and coordinate an agreeable completion schedule before proceeding. The Contractor must advise the COR or WS program representative immediately when parts availability, additional discrepancies, or technical issues affect the agreed completion date.

2.8.6 Emergency and After-Hours Repairs

The Contractor must have a certified mechanic on duty or on call 24 hours per day and 7 days per week to provide emergency repairs or maintenance to keep or make the aircraft airworthy. The mechanic must be contactable by the pilot, WS office, COR, State Director, or other authorized Government representative by telephone or cellular telephone at any time. When authorized and required, the Contractor must travel to the site of the aircraft to provide maintenance or repairs when the aircraft cannot be flown to the Contractor's facility.

2.8.7 Accessibility and Records Access

- Aircraft must be accessible to authorized WS personnel while housed at the Contractor's maintenance facility.
- Mechanic and repair logbooks must be accessible to the pilot, WS State Director, COR, and authorized APHIS or WS aviation safety or airworthiness personnel.
- Pilot logbooks or flight hour information must be accessible as needed to confirm aircraft hours flown and support maintenance tracking.
- Additional maintenance tracking software or electronic reporting may be required in the future at no additional cost to the Government unless otherwise authorized in writing.

2.8.8 Parts, Materials, Components, and Labor

- The Contractor must provide all parts, materials, consumables, and components required for approved work unless the Government elects to furnish specific property or parts.
- Parts or components that fail inspection or are nonconforming must be replaced in accordance with FAR 52.212-4(a), FAA requirements, manufacturer data, and approved maintenance practices.
- Engine, component, or major assembly replacement must be performed using new, overhauled, remanufactured, or otherwise approved components that meet manufacturer standards and contract requirements. Warranty documentation must be provided when applicable.
- The Contractor must identify cost-effective and technically sound options for Government consideration when multiple repair methods are available.
- Invoices for parts must be supported by copies of vendor invoices or other documentation sufficient to show price, part number, traceability, and airworthiness approval.

2.8.9 Test Flights and Aircraft Movement

Aircraft will be delivered to and picked up from the Contractor's maintenance facility by an APHIS, WS pilot or other authorized Government pilot. Non-USDA personnel are prohibited

from flying Government-owned aircraft unless specifically authorized in writing by the Contracting Officer and all applicable aviation authorities. Maintenance facility personnel must use an APHIS, WS pilot for maintenance test flights unless otherwise authorized. The cost of transporting the aircraft to and from the Contractor's facility is the responsibility of the Government unless otherwise stated in an order.

2.8.10 Communication and Coordination

Contractor mechanics and Government pilots must maintain a professional dialogue regarding the condition, status, and airworthiness of the aircraft. The Contractor must keep the COR or authorized WS program representatives informed of inspection results, discrepancies, repair options, parts delays, expected completion dates, and any issue affecting mission availability or airworthiness.

2.9 - Government Roles and Responsibilities

The Contracting Officer will designate a COR or WS program representative to coordinate services obtained under this contract and monitor performance. The Government will advise the Contractor of upcoming and specified inspections based on aircraft usage and mission needs. Other WS personnel may assist in coordination, but they must keep the COR or WS program representative informed of communications affecting schedule, cost, scope, or aircraft status. Only the Contracting Officer may change contract terms, obligate funds, or authorize work outside the scope of an order.

2.10 - Contractor Key Personnel

2.10.1 Key Personnel Designation

The Contractor must identify personnel whose qualifications and availability are essential to successful contract performance, including the maintenance manager, lead mechanic, Inspection Authorization mechanic, avionics technician, and any other personnel proposed to perform critical maintenance or inspection functions.

2.10.2 Approval and Substitution of Key Personnel

The Contractor must provide evidence of required licenses, certifications, training, and experience for key personnel upon request. Substitution of key personnel must not degrade performance, qualification levels, emergency support, or continuity of operations. The Government may reject any proposed personnel whose qualifications are insufficient for the ordered work.

2.10.3 Continuity of Operations

The Contractor must maintain adequate staffing and internal planning to ensure continuity of operations during employee absence, workload surges, emergency repairs, or extended maintenance events. Failure to provide qualified personnel within required timeframes may be considered a Contractor performance issue.

2.11 - Government-Furnished Property

The Contractor must comply with FAR 52.245-1, Government Property, Alternate I. The Contractor assumes the risk of loss or damage to all Government Furnished Equipment upon delivery, except for reasonable wear, tear, or consumption. The Contractor must maintain all insurance required to support the risk allocation established by FAR 52.245-1 Alternate I.

2.12 - Contractor Liability

The Contractor is liable for damages, losses, or injuries to people and property resulting directly or indirectly from work performed by the Contractor, its employees, or approved subcontractors while performing under this contract. The Contractor must immediately notify the Contracting Officer and COR or WS program representative of any damage, loss, injury, unsafe condition, or suspected damage to Government aircraft or property during contract performance.

2.13 - Maintenance Documentation and Recordkeeping

- All maintenance, inspections, repairs, component changes, and equipment installations must be recorded in the affected aircraft maintenance records in accordance with 14 CFR part 43, 14 CFR 91.417, and other applicable requirements.
- Maintenance records must include aircraft time-in-service, hour meter readings when applicable, description of work performed, references to technical data used, part and component information, signature, certificate number, and approval for return to service when required.
- The Contractor must maintain the capability to provide logbook data, component time and service information, discrepancy status, and maintenance tracking information on a recurring basis or upon request.
- The Contractor must immediately notify the COR or WS program representative of any proposed change of engine, drivetrain, flight control, major airframe component, major avionics component, or other significant aircraft configuration change.
- Weight and balance data, equipment lists, and applicable aircraft records must be updated following any major repair, major alteration, component change, or equipment installation affecting aircraft configuration or center of gravity.
- Records must be made available to the Government upon request within five business days, or sooner if required to support airworthiness or mission scheduling.

2.14 - Task Orders

- Government funding will be obligated to the contract by task order. A total not to exceed contract amount will be included.
- The Contracting Officer may provide funding under this contract obligating funds for the procurement of services prior to the Government needing delivery of said ordered services.
- The COR or WS program representative will coordinate services and schedule specific performance dates and quantities up to, but not exceeding, the total quantity authorized by the Contracting Officer.
- The Contractor must inform the Contracting Officer if the task order reaches 80% of the total not to exceed contract amount.

2.15 - Invoices and Payment Information

- USDA, APHIS uses the Invoice Processing Platform (IPP) for electronic submission and tracking of invoices and payment information. Invoices must be submitted electronically through IPP.
- Invoices must be prepared in accordance with FAR 52.212-4(g). Invoices must be supported by a summary of actual hours expended, approved firm fixed price repair quotes, inspection completion records, and copies of invoices for parts used in repairs as applicable.
- Credit card purchases are allowed only when authorized by the Contracting Officer. The Contracting Officer will provide authorization and names of individuals authorized to make credit card purchases under this contract in writing by email.

2.16 - Safety and Security Requirements

The Homeland Security Presidential Directive-12 (HSPD-12), dated August 27, 2004, requires the development and agency implementation of a mandatory Government-wide standard for secure and reliable forms of identification for Federal employees and Contractors, including Contractor employees. As directed by HSPD-12, on February 25, 2005, the Department of Commerce issued FIPS PUB 201, which is a federal standard for secure and reliable personal identity verification (PIV) for routine physical access to Federally controlled facilities or information systems. Office of Management and Budget (OMB) memorandum M-05-24 dated August 5, 2005, provides instructions for implementing HSPD-12 according to FIPS PUB 201, and M-08-01, dated October 23, 2007, reminds all parties that a background investigation is required.

48 CFR 3052.204-71 requires each individual employed under a federal contract to be a citizen of the United States of America, or a non-U.S. citizen who has been lawfully admitted for permanent residence as evidence by a Permanent Resident Card (USCIS I-551).

Contractor's must identify in their quotes or proposals, the names and citizenship of all non-U.S. citizens proposed to work under the contract. Any additions or deletion of non-U.S. citizens after contract award must also be reported to the CO.

All Contractor personnel must have a valid driver's license or identification.

The Contractor must, through their own internal background investigation protocol and pre-employment investigation, ensure that each Contractor employee submitted for a federal background investigation is reasonably expected to receive a favorable adjudication of their respective investigation.

For additional information related to USDA implementation of HSPD-12, visit <http://hspd12.usda.gov>

2.17 - Wage Determination and Labor Rates

The Department of Labor Service Contract Act applies to this contract. Task orders will specify the applicable wage determination for the ordering period. The Contractor is responsible for obtaining the proper wage determination for the location where work will be performed and for

determining the appropriate labor categories or occupation codes under the applicable wage determination. Wage determinations are available at SAM.gov. Contact the Contracting Officer if assistance is needed.

2.18 - Insurance Requirements

The Contractor must maintain all insurance required by FAR 52.245-1, Government Property, Alternate I, AGAR 428.306, and the following aviation-specific coverage:

2.18.1 Hangarkeepers Liability Insurance

The Contractor must maintain Hangarkeepers Liability insurance covering loss of or damage to Government-owned aircraft while in the Contractor's care, custody, or control, including during inspection, maintenance, storage, ground operations, run-ups, taxi, and engine testing.

Coverage requirements:

- Per-Aircraft Limit: Not less than the current hull value of each Government aircraft maintained under this contract.
- Aggregate Limit: Sufficient to cover multiple Government aircraft that may be present at the Contractor's facility at the same time.
- Additional Insured: "United States of America, USDA, APHIS" must be named as Additional Insured.
- Waiver of Subrogation: Insurer must waive rights of subrogation against the United States.
- Notice of Cancellation: Insurer must provide at least thirty (30) days' prior written notice to the Contracting Officer for cancellation or material change in coverage.
- Coverage Territory: Insurance must apply to all locations at which Government aircraft may be maintained, housed, moved, or tested.

2.18.2 Commercial General Liability (CGL) Insurance

The Contractor must maintain Commercial General Liability insurance applicable to all work performed under the contract. CGL insurance must:

- Cover bodily injury, property damage, completed operations, and premises liability.
- Name "United States of America, USDA, APHIS" as Additional Insured.
- Include a Waiver of Subrogation in favor of the United States.

2.18.3 Proof of Insurance

The Contractor must provide certificates of insurance and required endorsements to the Contracting Officer before beginning performance and annually upon renewal. Updated certificates must be submitted promptly upon any policy changes.

2.19 - Quality Assurance Surveillance Plan (QASP)

A QASP applies to this contract. The QASP describes the Government's methods for evaluating Contractor performance against the requirements of this PWS. The QASP is a Government-developed and Government-administered tool used to ensure acceptable performance and does not change the Contractor's responsibilities under the contract. Surveillance is limited to

assessing outcomes, deliverables, records, and compliance with contract requirements and will not involve supervision or control over Contractor personnel.

PART 3.0 – CONTRACT CLAUSES

Federal Acquisition Regulation (FAR) and United States Department of Agriculture Acquisition Regulation (AGAR) Clauses and Provisions

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference Feb 1998

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

- 52.212-4 Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)
 - ☐ Alternate I (Nov 2025) of 52.212-4
- 52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)
- 52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
- 52.222-50 Combating Trafficking in Persons (Nov 2025)
 - ☐ Alternate I (Nov 2025) of 52.222-50
- 52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
- 52.232-39 Unenforceability of Unauthorized Obligations (Jun 2013)
- 52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
- 52.233-3 Protest After Award (Sep 2025)
- 52.233-4 Applicable Law for Breach of Contract Claim (Sep 2025)
- 52.240-91 Security Prohibitions and Exclusions (Nov 2025)
 - ☐ Alternate I (Nov 2025) of 52.240-91
- 52.244-6 Subcontracts for Commercial Products and Commercial Services (Nov 2025)

The following clauses are applicable if checked:

- ☒ 52.203-6 Restrictions on Subcontractor Sales to the Government (Jun 2020) with Alternate I (Nov 2021) of 52.203-6
- ☐ 52.203-13 Contractor Code of Business Ethics and Conduct (Nov 2021)
- ☐ 52.204-9 Personal Identity Verification of Contractor Personnel Jan 2011
- ☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)
- ☐ 52.204-91 Contractor identification (Nov 2025)

- ☒ 52.209-6 Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)
- ☒ 52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters (Sep 2025)
- ☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)
- ☐ 52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Nov 2025)
- ☒ 52.219-6 Notice of Total Small Business Aside (Nov 2025)
 - ☐ Alternate I (Mar 2020).
- ☒ 52.219-8 Utilization of Small Business Concerns (Nov 2025)
- ☐ 52.219-9 Small Business Subcontracting Plan (Nov 2025)
 - ☐ Alternate III (Nov 2025) of 52.219-9.
 - ☐ Alternate IV (Nov 2025) of 52.219-9
- ☒ 52.219-14 Limitations on Subcontracting (Nov 2025)
- ☐ 52.219-16 Liquidated Damages—Subcontracting Plan (Nov 2025)
- ☐ 52.219-33 Nonmanufacturer Rule (Nov 2025)
- ☒ 52.222-3 Convict Labor (June 2003)
- ☐ 52.222-19 Child Labor—Cooperation with Authorities and Remedies (Nov 2025)
- ☒ 52.222-35 Equal Opportunity for Veterans (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-35
- ☒ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-36
- ☒ 52.222-37 Employment Reports on Veterans (Nov 2025)
- ☒ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)
- ☒ 52.222-41 Service Contract Labor Standards (Aug 2018)
- ☐ 52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)

This Statement is for Information Only:

It is not a Wage Determination

Employee Class	Monetary Wage -- Fringe Benefits
Aircraft Mechanic	Occupation Code 23021 – 23023 WG – 10 – 12

- ☒ 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (Multiple Year and Option Contracts) (Aug 2018)
- ☐ 52.222-44 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (May 2014)
- ☐ 52.222-51 Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014)

- ☐ 52.222-53 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (Nov 2025)
- ☒ 52.222-54 Employment Eligibility Verification (Nov 2025)
- ☒ 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)
- ☒ 52.222-90 Addressing DEI Discrimination by Federal Contractors (Apr 2026)
- ☒ 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (Nov 2025)
- ☐ 52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)
 - ☐ Alternate I (May 2008) of 52.223-9
- ☐ 52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Nov 2025)
- ☐ 52.223-12 Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (Nov 2025)
- ☐ 52.223-23 Sustainable Products and Services (Nov 2025)
- ☐ 52.224-3 Privacy Training (Jan 2017)
 - ☐ Alternate I (Jan 2017) of 52.224-3
- ☒ 52.225-1 Buy American-Supplies (Nov 2025)
 - ☐ Alternate I (Oct 2022) of 52.225-1
- ☐ 52.225-3 Buy American--Free Trade Agreements--Israeli Trade Act (Nov 2025)
 - ☐ Alternate II (Nov 2025) of 52.225-3.
 - ☐ Alternate III (Nov 2025) of 52.225-3.
 - ☐ Alternate IV (Oct 2022) of 52.225-3
- ☐ 52.225-5 Trade Agreements (Nov 2023)
- ☐ 52.225-19 Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic or Consular Mission outside the United States (May 2020)
- ☐ 52.225-26 Contractors Performing Private Security Functions Outside the United States (Oct 2016)
- ☐ 52.226-4 Notice of Disaster or Emergency Area Set-Aside (Nov 2007)
- ☐ 52.226-5 Restrictions on Subcontracting Outside Disaster or Emergency Area (Aug 2025)
- ☐ 52.229-12 Tax on Certain Foreign Procurements
- ☐ 52.232-29 Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021)
- ☐ 52.232-30 Installment Payments for Commercial Products and Commercial Services (Nov 2021)
- ☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
- ☐ 52.232-34 Payment by Electronic Funds Transfer—Other Than System for Award Management (Jul 2013)
- ☐ 52.232-36 Payment by Third Party (Nov 2025)
- ☒ 52.237-2 Protection of Government Buildings, Equipment, and Vegetation (Apr 1984)
- ☐ 52.237-3 Continuity of Services (Jan 1991)
- ☐ 52.240-92 Security Requirements (Nov 2025)

- ☐ 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (No 2025)
- ☐ 52.247-64 Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2025)
 - ☐ Alternate I (Apr 2023) of 52.247-64.
 - ☐ Alternate II (Nov 2021) of 52.247-64

Other Applicable Clauses

- 52.216-18 Ordering (AUG 2020)
 - (a) date of award and the period of performance end date of the last ordering period
- 52.216-19 Order Limitations (Oct 1995)
 - (a) \$2,500
 - (b)(1) \$250,000.00
 - (b)(2) \$500,000.00
 - (b)(3) 30 days
 - (d) 3 days
- 52.216-22 Indefinite Quantity (Oct 1995)
 - (d) 6 months from the contract's effective period
- 52.217-8 Option to Extend Services (Nov 1999)
 - 30 calendar days prior to contract expiration
- 52.245-1 Government Property (Sep 2021)
 - Alternate 1
- 52.245-9 Use and Charges (Apr 2012)

AGAR Clauses

- 452.203-71 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Compliance (May 2026)

(a) By entering into this contract, the contractor certifies that:

- (1) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution, and it will remain compliant for the duration of the contract.
- (2) Neither it nor any subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution, and the contractor and any subcontractor or teaming partner will not do so for the duration of the contract.

(b) If the contractor participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, the contractor certifies that it will remain compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology

Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The contractor affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the contractor is not eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to contractor's compliance with the above requirements and/or eligibility for the contract may subject the contractor to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) The contractor must include the provisions of this clause in all subcontract solicitations.

(g) Failure on the part of the contractor or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate this contract for default.

(End of Clause)

AGAR 452.203-72 Unenforceable Supplier Terms (MAY 2026)

(a) Definitions.

Supplier terms mean provisions customarily drafted by vendors of supplies or services and intended to create a binding legal obligation on the end user. The term applies:

1. Regardless of the format or style of the document. For example, supplier terms may appear in standard terms of sale or lease, Terms of Service (TOS), End User License Agreement (EULA), or another similar legal instrument or agreement, and may be presented as part of a proposal or quotation responding to a solicitation for a contract or order or otherwise become effective after the contract date.
2. Regardless of the media or delivery mechanism used. For example, supplier terms may be presented as one or more paper documents or may appear on a computer or other electronic device screen during a purchase, software installation, other product delivery, registration for a service, or another transaction.

(b) Applicability. When any supply or service acquired under this contract is subject to supplier terms, the supplier terms are deemed part of the contract only to the extent they are consistent with this clause. Supplier terms that conflict with any part of this clause, the contract, or Federal law are void and will not be considered incorporated into a contract, even if they are physically present in a contract documentation or systems. In the event of any inconsistency between supplier terms and this contract, this clause and the terms of the Government contract must govern and supersede any supplier terms in all cases.

(c) Authorization Required. Notwithstanding any other provision, no supplier terms must be binding on the Government unless the term is expressly authorized on the USDA Supplier Terms Authorization Form signed by the Contracting Officer, and the completed Authorization Form has been incorporated into the contract.

(d) Unenforceable Terms. Any supplier terms that impose obligations or restrictions inconsistent with applicable Federal law are unenforceable against the Government and deemed stricken from the agreement. This includes, but is not limited to, any clause that:

- (1) Requires the Government to pay future fees, penalties, interest, legal costs, early-termination fees, cancellation fees, minimum purchase commitments, true-up payments, seat-count minimums, usage minimums, continued-use charges, or any other financial obligation not expressly authorized by the contract.
- (2) Requires the Government to indemnify the contractor or any other entity.
- (3) Restricts the Government's ability to obtain similar supplies or services from another source.
- (4) Imposes any penalty, financial or otherwise, based on the Government's decision not to exercise an option.
- (5) Subjects the United States Government to the laws of any U.S. state, territory, district, municipality, or foreign nation, except where Federal law expressly permits such application.
- (6) Requires dispute resolution in a forum or venue other than one prescribed by applicable Federal law.
- (7) Establishes a period of limitations for bringing an action that differs from that provided by applicable Federal law.
- (8) Grants the contractor rights to use, mine, access, aggregate, analyze, or otherwise exploit Government data, usage data, or metadata.
- (9) Deems the Government to have accepted initial or revised terms based on silence, continued performance, or failure to object.
- (10) Grants the supplier the right to audit Government facilities, systems, records, or use of the product or service, except as expressly authorized by the contract and applicable Federal law.
- (11) Requires the Government to accept supplier security requirements, network access requirements, monitoring, penetration testing, or other technical or security measures.
- (12) Permits the supplier to suspend, degrade, or terminate access to products or services based on alleged non-payment, alleged breach, automated security triggers.
- (13) Limits the Government's right to use, install, access, test, evaluate, or transfer the licensed product or service in any manner consistent with the contract and Federal law.

- (14) Requires the Government to store, process, maintain, or transmit data in a particular geographic location, or permits the supplier to transfer Government data outside the United States, except as expressly authorized by applicable Federal law.
 - (15) Authorizes the supplier to use the Government's name, seal, trademark, logo, or any reference to the Government as an end user or customer for marketing, publicity, promotional activities, press releases, or similar purposes.
 - (16) Incorporates by reference, or requires the Government to accept, terms or conditions imposed by any third party, subcontractor, or upstream service provider, unless such terms are expressly incorporated into the contract by bilateral modification.
 - (17) Limits, conditions, or negates the contractor's performance obligations, service levels, or remedies through a supplier-provided service level agreement (SLA).
 - (18) Uses Government data, usage data, metadata, prompts, content, or interactions to train, fine-tune, improve, or derive any artificial intelligence, machine learning, or automated decision-making model.
 - (19) Subjects the Government to automated decision-making, automated risk scoring, automated content moderation, or any algorithmic process that may affect access, performance, or rights under the contract.
 - (20) Utilizes artificial intelligence or algorithmic tools that produce decisions, recommendations, or outputs affecting contract performance without providing transparency, explainability, auditability, and bias-mitigation consistent with applicable Federal law and policy.
 - (21) Profiles, tracks, or analyzes Government user behavior, preferences, communications, or interactions for personalization, marketing, or algorithmic optimization purposes.
- (e) Non-binding Actions. Neither the Government nor any Government authorized end user is deemed to have consented to any term, condition, or clause by virtue of its inclusion in the supplier agreement or through the use of clickwrap, browsewrap, "I agree" mechanisms, or similar means. Execution of such mechanisms does not bind the Government or its authorized end users to any unenforceable terms.
- (f) End user. The supplier agreement must bind the ordering activity as the end user to the extent it does not conflict with the terms of this clause, but it must not bind or impose personal liability on any Government employee or any person acting on behalf of the Government in their personal capacity.
- (g) Law and disputes. The supplier agreement is governed by Federal law.
- (h) Statutory exception. This clause does not apply to indemnification or any other payment by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.
- (i) Continued performance. The supplier or licensor must not unilaterally revoke, terminate, or suspend any rights granted to the Government except as allowed by the contract. If the supplier or licensor believes the ordering activity to be in breach of the supplier agreement, it must pursue its

rights under the Contract Disputes Act or other applicable Federal statute while proceeding diligently with performance, pending final resolution of any dispute in accordance with the Disputes Clause at FAR 52.212-4(d) or FAR 52.233-1, as applicable.

(j) Arbitration. Binding arbitration must not be used unless specifically authorized by agency guidance.

(k) Equitable or injunctive relief. Equitable or injunctive relief, including the award of attorney fees, costs, or interest, may be awarded against the United States Government only when explicitly provided by statute (e.g., the Prompt Payment Act or the Equal Access to Justice Act).

(l) Revisions to supplier agreements. Any revisions to the supplier agreement must be incorporated into the contract using a bilateral modification. Unilateral revisions are not binding on the Government.

(m) No automatic renewals. If any license or service tied to periodic payment is provided under the supplier agreement (e.g., annual software maintenance or annual lease term), such license or service must not renew automatically upon expiration of its current term without prior express written consent from an authorized Government representative.

(n) Indemnification. Any clause of the supplier agreement requiring the supplier or licensor to defend or indemnify the end user is amended to provide that the U.S. Department of Justice has the sole right to represent the United States in any such action, in accordance with 28 U.S.C. 516.

(o) Taxes or surcharges. Any taxes or surcharges which the supplier or licensor seeks to pass along to the Government as end user will be governed by the terms of the associated Government contract or order and must be submitted to the Contracting Officer for a determination of applicability prior to invoicing unless specifically agreed otherwise.

(p) Non-assignment. The supplier agreement may not be assigned, nor may any rights or obligations thereunder be delegated, without the Government's prior approval, except as expressly permitted by FAR 52.212-4(b) or FAR 52.232-23, as applicable.

(q) Confidential information. If the supplier agreement includes a confidentiality clause, such clause is amended to state that neither the agreement nor the contract price list, as applicable, must be deemed "confidential information." Issues regarding release of "unit pricing" will be resolved consistent with the Freedom of Information Act. Notwithstanding anything in the supplier agreement to the contrary, the Government may retain any confidential information as required by law, regulation, or its internal document retention procedures for legal, regulatory, or compliance purposes; provided, however, that all such retained confidential information will continue to be subject to the confidentiality obligations of the supplier agreement.

(r) Conflict with Federal law. If any other language, provision, or clause of the supplier agreement conflicts or is inconsistent with Federal law or the terms and conditions of this contract, such language, provisions, or clauses will be considered null and void and will not be binding on the United States Government.

(End of Clause)

452.204-70 Modification for Contract Closeout (Apr 2026)

(a) If unliquidated funds in the amount of \$1000 or less remain on the contract, the Contracting Officer (Contracting Officer) may issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but is not required to provide a signature. The Contracting Officer will immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) For commercial contracts not exceeding the simplified acquisition procedure threshold under FAR 12.001(c), if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification. Only the modification requires the contractor's signature, though a Release of Claims may be requested. If the required documents are not returned within 60 days, the Contracting Officer will issue a unilateral modification and proceed with closeout once performance is complete, acceptance is confirmed, and final payment is made.

(c) For all other non-commercial or non-cost-reimbursement contracts, if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification and a Release of Claims, both requiring contractor signature. If these documents are not returned within 120 days, the Contracting Officer will issue a unilateral modification and proceed with closeout upon completion of performance, acceptance, and final payment.
(End of Clause)

PART 4.0 – SOLICITATION PROVISIONS

52.252-1 Solicitation Provisions Incorporated by Reference Feb 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

52.212-1	Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations - Representation (Sep 2025)
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Sep 2025)
52.240-90	Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

The following provisions are applicable if checked: You can either leave all clauses and check the boxes of the ones that apply or delete the clauses that do not apply. If you delete lines, you will need to right-click on the box and select “remove content control” before it will delete.

- ☒ 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
- ☒ 52.204-7 System for Award Management—Registration (Nov 2025)
 - ☐ Alternate I (Nov 2025) to 52.204-7
- ☐ 52.204-90 Offeror Identification (Nov 2025)
- ☐ 52.207-6 Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts) (Aug 2024)
- ☐ 52.209-12 Certification Regarding Tax Matters (Oct 2025)
- ☐ 52.219-2 Equal Low Bids (Nov 2025)
- ☐ 52.222-18 Certification Regarding Knowledge of Child Labor for Listed End Products (Feb 2021)
- ☐ 52.222-48 Exemption from Application of the Service Contract Labor Standards for Maintenance, Calibration, or Repair of Certain Equipment—Certification (Nov 2025)
- ☐ 52.222-52 Exemption from Application of the Service Contract Labor Standards for Certain Services—Certification (Nov 2025)
- ☐ 52.222-56 Certification Regarding Trafficking in Persons Compliance Plan (Oct 2020)
- ☐ 52.223-4 Recovered Material Certification (May 2008)
- ☐ 52.225-2 Buy American Certificate (Oct 2022)
- ☐ 52.225-4 Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Nov 2025)
- ☐ 52.225-6 Trade Agreements—Certificate (Feb 2021)
- ☐ 52.226-3 Disaster or Emergency Area Representation (Nov 2007)
- ☒ 52.229-11 Tax on Certain Foreign Procurements—Notice and Representation (Jul 2025)

Other Applicable FAR Provisions

None

AGAR Provisions

452.203-70 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Certification (Dec 2025)

(a) By submission of its offer, the offeror certifies that:

- (1) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution.
- (2) Neither it nor any proposed subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution.

(b) If the offeror participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, by submission of its offer, the offeror certifies that it is compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The offeror affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the offeror will not be eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to offeror's compliance with the above requirements and/or eligibility for the contract may subject the offeror to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) Failure on the part of the offeror or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate the contract for default.

(End of Provision)